

Court No. - 49

Case :- CRIMINAL MISC. BAIL APPLICATION No. - 23436
of 2023

Applicant :- Ajit Pandit

Opposite Party :- State of U.P.

Counsel for Applicant :- Abhishek Dwivedi, Vibhu Rai

Counsel for Opposite Party :- G.A.

Hon'ble Rajeev Misra,J.

On the matter being taken up, Mr. Manu Raj Singh, the learned A.G.A. submits that he has not received instructions in the matter.

In view of above, the hearing of bail application is adjourned.

Matter shall re-appear as fresh 31.5.2023.

Order Date :- 24.5.2023

HSM

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Hon'ble Rajeev Misra, J.

Heard Mr. Vibhu Rai, the learned counsel for applicant and the learned A.G.A. for State.

This application for bail has been filed by applicant Ajit Pandit seeking his enlargement on bail in Case Crime No. 0151 of 2023, under Section 7 Prevention of Corruption Act, 1988, P.S. Baldeo, District Mathura, during the pendency of trial.

Perused the record.

Record shows that in respect of an incident, which is alleged to have occurred on 20.4.2023, a prompt F.I.R. dated 20.4.2023 was lodged by first informant Sanjay Kumar Yadav and was registered as Case Crime No. 0151 of 2023, under Section 7 Prevention of Corruption Act, 1988, P.S. Baldeo, District Mathura. In the aforesaid F.I.R., applicant has been nominated as solitary named accused.

The gravamen of the allegations made in the F.I.R. is to the effect that the complainant Aman Kumar had applied for a new commercial electricity connection of 2 K.W. in the premises described as Mathura Saray Salwahan, Mathura. According to the complainant, applicant is alleged to have demanded bribe of Rs. 10,000/- for submitting a low estimate. A complaint was made by the complainant to the Superintendent Prevention of Corruption Organization, Agra. Accordingly, a trap was laid on 20.04.2023. Applicant was caught red handed with cash Rs. 10,000/- The result of the chemical test of the recovery made from the applicant is also said to be against applicant.

Learned counsel for applicant contends that though applicant is a named accused, but he is innocent. The allegations made in the

F.I.R. are false and concocted. As such, applicant is being falsely prosecuted in aforementioned case crime number.

It is next contended that applicant is working as a Junior Engineer in Dakshinachal Vidyut Vitaran Nigam. Complainant has applied for a new commercial connection of 2 K.W. in the premises described above. Since there is electricity dues against the premises in which new connection was applied. Accordingly, the application for grant of fresh electricity connection was rejected by the applicant on 10.3.2023 in terms of paragraph 43 of the U.P. Electricity Supply Code.

On the above premise, it is urged that the prosecution story as unfolded in the F.I.R. is not worthy of reliance. On the conspectus of above, he submits that the acid test which is required to be established for an offence under Section 7 of Prevention of Corruption Act (Demand and Acceptance) as explained by the Constitution Bench in **Neeraj Dutt Vs. State (Govt. N.C.T. Delhi) 2022 SCC Online SC 1724** (paragraph 68) is not satisfied against the applicant upto this stage. He, therefore, contends that since prima facie no offence under Section 7 of Prevention of Corruption Act is made out against applicant, therefore, applicant is liable to be enlarged on bail.

It is further contended that even otherwise applicant is a man of clean antecedents, inasmuch as he has no criminal history to his credit except the present one. Applicant is in jail since 20.4.2023. As such, he has undergone more than 1 month of incarceration. Investigation is still going on. However, no such circumstance has yet emerged against applicant on the basis of which it can be said that custodial arrest of the applicant is absolutely necessary for investigating the concerned case crime number. He, therefore, submits that applicant is liable to be enlarged on bail during the pendency of trial. In case, applicant is enlarged on bail, he shall not misuse the liberty of bail and shall co-operate with the trial.

Per contra, the learned A.G.A. has opposed the present application for bail. He submits that since applicant is a named accused, therefore, he does not deserve any indulgence of this Court. Applicant was caught red handed with cash Rs. 10,000/-. The chemical test in respect of the recovery made from the applicant is also against the applicant. He, therefore, contends that prima facie at this stage, it cannot be said that applicant is innocent. The innocence of the applicant shall be established only during the course of trial. Parameters regarding grant of bail in respect of economic offences are far more stringent than the grounds which

are required to be considered for granting bail in ordinary criminal matter. When the aforesaid test is applied to the present case, no case for grant of indulgence by this Court is made out. Accordingly, prayer made for bail is liable to be refused. However, the learned A.G.A. could not dislodge the factual/legal submissions urged by the learned counsel for applicant with reference to the record at this stage.

Having heard the learned counsel for applicant, the learned A.G.A. for state, upon perusal of record, nature of offence, evidence, complicity of the accused, accusation made and coupled with the fact that prima facie no offence under Section 7 of Prevention of Corruption Act can be said to be made out against applicant, in view of the order passed by U.P. Power Corporation Ltd. on 19.3.2023, the clean antecedents of applicant, the recovery being only of Rs. 10,000/-, applicant being a Government Servant, therefore, there are no chances of the fleeing away from the trial, no such circumstance could be pointed out by the learned A.G.A. that custodial arrest of applicant is absolutely necessary for investigating concerned case crime number, the clean antecedents of applicant, but without making any comment on the merits of the case, applicant has made out a case for bail.

Accordingly, the bail application is allowed.

Let the applicant Ajit Pandit involved in aforesaid case crime number, be released on bail on his furnishing a personal bond with two sureties each in the like amount to the satisfaction of the court concerned with the following conditions which are being imposed in the interest of justice :-

- (i) The applicant shall file an undertaking to the effect that he shall not seek any adjournment on the date fixed for evidence when the witnesses are present in court. In case of default of this condition, it shall be open for the trial court to treat it as abuse of liberty of bail and pass orders in accordance with law.
- (ii) The applicant shall remain present before the trial court on each date fixed, either personally or through his counsel. In case of his absence, without sufficient cause, the trial court may proceed against him under section 229-A I.P.C..
- (iii) In case, the applicant misuses the liberty of bail during trial and in order to secure his presence proclamation under section 82 Cr.P.C., may be issued and if applicant fails to appear before the court on the date fixed in such proclamation, then, the trial court shall initiate proceedings against him, in accordance with law,

under section 174-A I.P.C.

(iv) The applicant shall remain present, in person, before the trial court on dates fixed for (1) opening of the case, (2) framing of charge and (3) recording of statement under section 313 Cr.P.C. If in the opinion of the trial court absence of the applicant is deliberate or without sufficient cause, then it shall be open for the trial court to treat such default as abuse of liberty of bail and proceed against him in accordance with law.

(v) The trial court may make all possible efforts/endeavour and try to conclude the trial within a period of one year after the release of the applicant.

However, it is made clear that any wilful violation of above conditions by the applicant, shall have serious repercussion on his bail so granted by this court and the trial court is at liberty to cancel the bail, after recording the reasons for doing so, in the given case of any of the condition mentioned above.

Order Date :- 31.5.2023

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